F

FAR EASTERN DEPARTMENT

JAPAN

FJ 1022/316

33

FROM

Mr. Clutton

Tokyo

No. 473

Dated 26th April 1951

Received in Registry— 27th April 1951.

Japanese Peace Treaty: Latest comments of Mr Clutton's on the United Kingdom draft.

Refers to F.O. Cable of 19th April (FJ 1022/242)

Repeated to Washington.

REFERENCES

(Print)

(How disposed of)

J. P. T. Distr. May 1st

Dft. to J. L. Clutton, 28/4/51 copied Washington, Wash.

MINUTES

Copy to Japan Peace Treaty Distrib:

He should be grateful for Ford's views on what islands are adjacent to for the Sakhalin.

2. He should be grateful for his legal Advisers views on paras 3 & 4 of this telegram with in particular as to whether the last sentence of Article 9 of the Japanese Constitution can in fact be taken to bear any meaning in international law.

3. Para 4 of this telegram is to this end & details (which purpose however then delayed he would be grateful for) but we should be grateful for an opinion.

(Act. Secy) 1/5.

(Action completed)

28/4

(Index)

Wash. 3/7/51

1. Ford (R. Allen)

2. Mr. Ellis

39451

/Only one

9.51

F

FAR EASTERN DEPARTMENT

JAPAN

FJ 1022/316
33

FROM

Mr. Clutton
Tokyo

No. 473
Dated 26th April 1951
Received in Registry— 27th April 1951.

Japanese Peace Treaty: United comments of Mr Clutton's on the United Kingdom draft.

Refers to F.O. Letter of 19th April (FJ 1022/242)

Replied w/tn.

REFERENCES

(Print)

(How disposed of)

J. P. T. Dist. May 5th

Dft. to J. K. Clutton, 28/4/51
Replied Tomkinson w/tn.

(Action completed)

25/4

(Index)

Noted 3/7/51

MINUTES

Copy to Japan Peace Treaty District:

We should be grateful for F.O.'s views on what islands are adjacent to for the Sakhalin.

2. We should be grateful for their legal Advisers views on paras 3 and 4 of this telegram in particular as to whether the last sentence (Article 9 of the Japanese Constitution) can in fact be taken to have any meaning in international law.

3. Para 4 of this telegram is rather out of date (their purpose has been delayed to award of peace purposes) but we should be grateful for an opinion.

(A.R. Swift) 14/5.

1. Ford (R. Allen).
2. Mr. Hemmings.

39451

/Only one

Reference:-
FO 371/92544
PUBLIC RECORD OFFICE
COPYRIGHT - NOT TO BE REPRODUCED PHOTOGRAPHICALLY WITHOUT PERMISSION

34

Only one of the islands adjacent to South Sakhalin is of any size. This is Kaiba Island (海馬島), 46° 15/20' N 141° 11/14' E. There are two other islands called Kaihyō-jima (海豹島) just south of the tip of the slender Kita-shiwe-toko peninsula, the easternmost extension of ~~the island~~ Karafuto (approx 144° 42' E 48° 33' + 35' N). I believe there is also an island south of the Naka-shiwe-toko peninsula, the more easterly of the two southern peninsulas of Karafuto (approx. 46° 1' N 143° 22' E).

On looking at a map showing these islands in relation to southern Sakhalin I should have thought the Hirudia formula both comprehensible and unambiguous. Whether it is legally satisfactory I do not know.

RS. Pelland.
15/5

Art 9 of the Japanese Const. is mainly rhetorical. Japan can renounce offensive war. She cannot renounce defensive war. She can decide whether or not she will become involved in war. Unless & until she becomes a permanently neutralized State on Swiss lines I see no reason why she should not sign the Geneva Conventions. Any consequential amendment of her Constitution is up to her.

I think the point in para. 4 is covered by the Enclosed draft.

Gl. Fitzmaurice 15/5

Draft.

A McDonnell
18/5

Mr. Fitzmaurice

Col Scott 19/5.

34

Only one of the islands adjacent to South Sakhalin is of any size. This is Kaiba Island (海馬島), 46° 15/20' N / 141° 11/14' E. There are two other islands called Kaihyō-jima (海豹島) just south of the tip of the slender Kita-shiretoko peninsula, the easternmost extension of ~~the~~ ~~ist~~ Karafuto (approx 144° 42' E 48° 33' & 35' N). I believe there is also an island south of the Naka-shiretoko peninsula, the more easterly of the two southern peninsulas of Karafuto (approx 46° 1' N 143° 22' E).

On looking at a map showing these islands in relation to southern Sakhalin I should have thought the Hurdia formula both comprehensible and unambiguous. Whether it is legally satisfactory I do not know.

RS. Rutland.
15/5

Adv of the Japanese Const. is mainly rhetorical. Japan can renounce offensive war. She cannot renounce defensive war. She cannot commit herself whether or not she will become involved in war. Unless & until she becomes a permanently neutralized State on Swiss lines I see no reason why she should not sign the Geneva Conventions. Any unconstitutional amendment of her Constitution is up to her.

I think the point in para. 4 is covered by the Cultural Accord.

G.H. Kitchener 15/5

Draft.

R.H. Maddox
18/5

Mr. Kitchener

PUBLIC RECORD OFFICE
Reference:-
FO 371/92544
COPYRIGHT - NOT TO BE REPRODUCED PHOTOGRAPHICALLY WITHOUT PERMISSION

FJ 1022/316

35

Cypher/OTP

FOREIGN OFFICE DISTRIBUTION

FROM TOKYO TO FOREIGN OFFICE

Mr. Clutton

No. 473 D. 2.02 p.m. 26th April, 1951.

26th April, 1951. R. 3.15 p.m. 26th April, 1951.

IMMEDIATE

CONFIDENTIAL

Addressed to Foreign Office telegram No. 473 of 26th April. Repeated for information to Washington.

Mr. Johnstone's letter of 19th April - United Kingdom Draft Japanese Peace Treaty.

Following are my only fresh comments.

2. Article 3. It seems important that we should persuade Americans to accept our definition of South Sakhalin. Article 5 of United States draft repeats the geographically incomprehensible Livadia formula South Sakhalin "and islands adjacent to it."

3. Article 19 (9). Can Japan adhere to these conventions without amending last sentence of Article 9 of Japanese Constitution under which right of belligerency of the state is not recognised.

4. Article 32(E). Although commerce may be held to cover import and export it might be wise to specify these two forms of activities insofar as they are not a subject of a state monopoly. Otherwise Japanese might be able to reserve to their own nationals importation and exportation of a wide range of goods and thus drive our firms out of business.

Foreign Office please pass to Washington with Priority as my telegram No. 19.

[Repeated to Washington.]

ADVANCE COPIES:

Mr. R.H. Scott
Head of Japan and Pacific Department.

XXXX

APR 27 1951

J 1022/316

F

35

Cypher/OTP

FOREIGN OFFICE DISTRIBUTION

FROM TOKYO TO FOREIGN OFFICE

Mr. Clutton

No. 473 D. 2.02 p.m. 26th April, 1951.
26th April, 1951. R. 3.15 p.m. 26th April, 1951.

IMMEDIATE

CONFIDENTIAL

Addressed to Foreign Office telegram No. 473 of 26th April. Repeated for information to Washington.

Mr. Johnstone's letter of 19th April - United Kingdom Draft Japanese Peace Treaty.

Following are my only fresh comments.

2. Article 3. It seems important that we should persuade Americans to accept our definition of South Sakhalin. Article 3 of United States draft repeats the geographically incomprehensible Livadia formula South Sakhalin "and islands adjacent to it."

3. Article 19 (g). Can Japan adhere to these conventions without amending last sentence of Article 9 of Japanese Constitution under which right of belligerency of the state is not recognised.

4. Article 32(E). Although commerce may be held to cover import and export it might be wise to specify these two forms of activities insofar as they are not a subject of a state monopoly. Otherwise Japanese might be able to reserve to their own nationals importation and exportation of a wide range of goods and thus drive our firms out of business.

Foreign Office please pass to Washington with Priority as my telegram No. 79.

[Repeated to Washington.]

ADVANCE COPIES:

Mr. R.H. Scott
Head of Japan and Pacific Department.

MEMX

APR 27 1951

Reference:- FO 371/92544
PUBLIC RECORD OFFICE
COPYRIGHT - NOT TO BE REPRODUCED PHOTOGRAPHICALLY WITHOUT PERMISSION

Registry No. FJ 1022/316

~~Top Secret.~~
~~Secret.~~
Confidential.
~~Restricted.~~
~~Open~~

23/4
23/3

+ 1c

May, 1951

36

Draft. AFM

G.L. Clutton, Esq., C.M.G.

TOKYO.

Mr. Fitzmaurice

(From: Mr. C.H. Johnston)

Copy to F.S. Tomlinson Washington.

NOTHING TO BE WRITTEN IN THIS MARGIN.

Thank you for your telegram No. 473 of the 26th April in which you make three comments upon our draft of the Japanese Peace Treaty. We have discussed your comments with Research Department and Fitzmaurice, with the following results. ~~I am to have the following comments to make.~~

Research Department say that only one of the islands adjacent to South Sakhalin is of any size. This is Kaiba Island at 141° ~~degrees,~~ 11′ ~~minutes,~~ 14″ ~~seconds East~~ 46° ~~degrees,~~ 15′ ~~minutes,~~ 20″ ~~seconds North.~~ N. There are two other islands called Kaikyo-jima just South of the tip of the slender Kita-Shiretoko peninsula, the easternmost extension of Karafuto. There is also thought to be an island south of the ~~Naka-shiretoko~~ peninsula, the more easterly of the two southern peninsulas of Karafuto. It therefore seems that the formula of the Livadia Agreement has some meaning. If this is so, there is some advantage in preserving it as has been done in Article 4 of the ~~joint U.S./U.K.~~ 4 new draft of the Treaty which was sent to the Chancery under cover of Japan and Pacific Department's letter F.J. 1022/ of May.

In paragraph 3 of your telegram under reference you ask whether Japan ~~and~~ can adhere to conventions on prisoners of war without amending the last sentence of Article 9 of the Japanese Constitution. We consider that this Article

/on

RECEIVED IN DIVISION
20 MAY 1951
23/5.
24/5.

(27274) Wt. 2283)—216 325m 11/50 G.S. St.

Registry No. FJ 1022/316

~~Top Secret.~~ ~~Secret.~~ Confidential. ~~Restricted.~~ ~~Open.~~

Draft.

May, 1951

36

+ 1c

23/4 23/3

G.L. Clutton, Esq., C.M.G.

TOKYO.

Mr. Fitzmaurice

(From: Mr. C.H. Johnston)

Thank you for your telegram No. 473 of the 26th April in which you make three comments upon our draft of the Japanese Peace Treaty. We have discussed your comments with Research Department and Fitzmaurice and ~~I have the following comments to make~~ with the following results.

Research Department say that only one of the islands adjacent to South Sakhalin is of any size. This is Kaiba Island at 141° ~~degrees~~, 11′ ~~minutes~~, 14″ ~~seconds~~ East, 46° ~~degrees~~, 15′ ~~minutes~~, 20″ ~~seconds North~~, N. There are two other islands called Kaikyo-jima just South of the tip of the slender Kita-Shakire-toko peninsula, the easternmost extension of Karafuto. There is also thought to be an island south of the ~~Naka-shire-toko~~ peninsula, the more easterly of the two southern peninsulas of Karafuto. It therefore seems that the formula of the Livadia Agreement has some meaning. If this is so, there is some advantage in preserving it as has been done in Article 4 of the ~~joint U.S./U.K.~~ new draft of the Treaty which was sent to the Chancery under cover of Japan and Pacific Department's letter F.J. 1022/ of May.

In paragraph 3 of your telegram under reference you ask whether Japan can adhere to conventions on prisoners of war without amending the last sentence of Article 9 of the Japanese Constitution. We consider that this Article

/on

boys tg

F.S. Tomlinson

Washington.

RECEIVED IN DIVISION 23 MAY 1951 23 5. 24 5.

NOTHING TO BE WRITTEN IN THIS MARGIN.

(27274) Wt. 22831—216 325m 11/50 G.S. St.

Reference:- FO 371/92544

PUBLIC RECORD OFFICE

COPYRIGHT - NOT TO BE REPRODUCED PHOTOGRAPHICALLY WITHOUT PERMISSION

of the Constitution is ~~merely~~ mainly rhetorical. Japan can~~not~~ renounce aggressive war, but she ~~can~~ cannot command whether or not she will become involved in war. Unless and until she becomes a permanently neutralised state on Swiss lines, we see no reason why she should not sign the Geneva Conventions.

Article 32 of the U.K. draft has now been drastically revised as a result of the Washington discussions. I think that Article 13(b)(ii) of the new draft adequately covers the point made in paragraph 4 of your telegram under reference.

I am sending a copy of this letter to Tomlinson at Washington.

C.A.S.
22.V.

NOTHING TO BE WRITTEN IN THIS MARGIN.

of the Constitution is ~~merely~~ mainly rhetorical. Japan cannot renounce aggressive war, but she ~~can~~ cannot command whether or not she will become involved in war. Unless and until she becomes a permanently neutralised state on Swiss lines, we see no reason why she should not sign the Geneva Conventions.

Article 32 of the U.K. draft has now been drastically revised as a result of the Washington discussions. I think that Article 13(b)(ii) of the new draft adequately covers the point made in paragraph 4 of your telegram under reference.

I am sending a copy of this letter to Tomlinson at Washington.

CAS
22.V.

NOTHING TO BE WRITTEN IN THIS MARGIN.

PUBLIC RECORD OFFICE
Reference:-
FO 371/92544
COPYRIGHT - NOT TO BE REPRODUCED PHOTOGRAPHICALLY WITHOUT PERMISSION

(FJ 1022/316)

FOREIGN OFFICE, S.W.1.

38

CONFIDENTIAL

23rd May, 1951.

Thank you for your telegram No. 473 of the 26th April in which you make three comments upon our draft of the Japanese Peace Treaty. We have discussed your comments with Research Department and Fitzmaurice with the following results.

2. Research Department say that only one of the islands adjacent to South Sakhalin is of any size. This is Kaiba Island at 141° 11' 14" E. 46° 15' 20" N. There are two other islands called Kaikyo-jima just South of the tip of the slender Kita-shire-toko peninsula the easternmost extension of Karafuto. There is also thought to be an island south of the Naka-shire-toko peninsula, the more easterly of the two southern peninsulas of Karafuto. It therefore seems that the formula of the Livadia Agreement has some meaning. If this is so, there is some advantage in preserving it as has been done in Article 4 of the new draft of the Treaty which was sent to the Chancery under cover of Japan and Pacific Department's letter F.J. 1022/242 of 19th May April

3. In paragraph 3 of your telegram under reference you ask whether Japan can adhere to conventions on prisoners of war without amending the last sentence of Article 9 of the Japanese Constitution. We consider that this Article of the Constitution is mainly rhetorical. Japan can renounce aggressive war, but she cannot command whether or not she will become involved in war. Unless and until she becomes a permanently neutralised state on Swiss lines, we see no reason why she should not sign the Geneva Conventions.

4. Article 32 of the United Kingdom draft has now been drastically revised as a result of the Washington discussions. I think that Article 13(b) (ii) of the new draft adequately covers the point made in paragraph 4 of your telegram under reference.

5. I am sending a copy of this letter to Tomlinson at Washington.

Yours ever,

(C. H. Johnston)

G. L. Clutton, Esq., C.M.G.,
Tokyo.

(FJ 1022/316)

FOREIGN OFFICE, S.W.1.

38

CONFIDENTIAL

23rd May, 1951.

Thank you for your telegram No. 473 of the 26th April in which you make three comments upon our draft of the Japanese Peace Treaty. We have discussed your comments with Research Department and Fitzmaurice with the following results.

2. Research Department say that only one of the islands adjacent to South Sakhalin is of any size. This is Kaiba Island at 141° 11' 14" E. 46° 15' 20" N. There are two other islands called Kaikyo-jima just South of the tip of the slender Kita-shire-toko peninsula the easternmost extension of Karafuto. There is also thought to be an island south of the Naka-shire-toko peninsula, the more easterly of the two southern peninsulas of Karafuto. It therefore seems that the formula of the Livadia Agreement has some meaning. If this is so, there is some advantage in preserving it as has been done in Article 4 of the new draft of the Treaty which was sent to the Chancery under cover of Japan and Pacific Department's letter F.J. 1022/242 of 19th ~~May~~ April

3. In paragraph 3 of your telegram under reference you ask whether Japan can adhere to conventions on prisoners of war without amending the last sentence of Article 9 of the Japanese Constitution. We consider that this Article of the Constitution is mainly rhetorical. Japan can renounce aggressive war, but she cannot command whether or not she will become involved in war. Unless and until she becomes a permanently neutralised state on Swiss lines, we see no reason why she should not sign the Geneva Conventions.

4. Article 32 of the United Kingdom draft has now been drastically revised as a result of the Washington discussions. I think that Article 13(b) (ii) of the new draft adequately covers the point made in paragraph 4 of your telegram under reference.

5. I am sending a copy of this letter to Tomlinson at Washington.

Yours ever,

(C. H. Johnston)

G. L. Clutton, Esq., C.M.G.,
Tokyo.

Reference:- FO 371/92544
PUBLIC RECORD OFFICE
COPYRIGHT - NOT TO BE REPRODUCED PHOTOGRAPHICALLY WITHOUT PERMISSION